

SENATE No. 508

The Commonwealth of Massachusetts

PRESENTED BY:

Sal N. DiDomenico, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act enabling children's right to vote.

PETITION OF:

NAME:

Robin Chen

DISTRICT/ADDRESS:

SENATE No. 508

By Mr. DiDomenico (by request), a petition (accompanied by bill, Senate, No. 508) of Robin Chen, for legislation to enable children’s right to vote. Election Laws.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 412 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act enabling children’s right to vote.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of Chapter 50 of the General Laws, as appearing in the 2018
2 Official Edition, is hereby amended by inserting in alphabetical position:-

3 “Capacity to make voting decisions independently” shall mean having the ability to
4 understand and appreciate the nature and consequences of voting decisions, including the
5 benefits and risks of and alternatives to any candidate for office, referendum question, or matter
6 of public affairs, and to reach an informed decision, without significant input from a caregiver

7 SECTION 2. The first sentence of Section 1 of Chapter 51 of the General Laws, as
8 appearing in the 2018 Official Edition, is hereby amended by replacing “years” with “days” and
9 by removing “a person under guardianship or”

SECTION 3. Section 1 of chapter 51 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by inserting after the first sentence the following:-

Section 2. A voter who lacks capacity to make voting decisions independently who arrives willingly at a polling site with a family member may receive from this family member any guidance, support, or executive assistance necessary to cast their ballot, except that no such ballot may be counted if the voter informs the presiding officer that the ballot should not count.

SECTION 4. Subsection (a) of Section 4 of Chapter 51 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended in the first sentence, by replacing “three years” with “one day.”

SECTION 5. Section 4 of chapter 51 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by inserting after section (e) the following subsection:-

(f) The name and address of any person under the age of 17 who so requests shall appear on the street list.

SECTION 6. Section 4A of Chapter 51 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by replacing the first sentence with the following:-

During the course of the annual listing of residents, the registrars shall notify residents of the opportunity to register themselves or their dependent family members as voters and shall provide residents with assistance in registering themselves or their dependent family members to vote.

SECTION 7. Section 14 of Chapter 51 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by replacing “years” with “days”

SECTION 8. Chapter 51 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by inserting, after Section 26A, the following sections:-

Section 26B. (a) The state secretary, in consultation with the commissioner of the department of public health, the registrar of the registry of vital records and statistics, the commissioner of early education and care, and the president of the most populous member organization whose mission is to advance pediatric medical care, shall establish a non-partisan baby and caregiver voter challenge program and shall promulgate regulations to implement the program in participating birth centers, childcare centers, and pediatric medical practices in the commonwealth; provided, however, that the regulations shall identify registration time periods that allow eligible persons to participate in all municipal and state elections, including primary elections.

(b) Directors of programs shall ensure that each voter challenge program implemented in their organization provides opportunities for outreach and for all eligible voters to register to vote, regardless of whether or not the eligible voter has a formal relationship with their organization.

Section 26C. (a) The state secretary, in consultation with the commissioner of elementary and secondary education, the board of elementary and secondary education, and the executive director of the most populous member organization whose mission is to advance afterschool programming shall establish a non-partisan voter challenge program and shall promulgate regulations to implement the program in participating schools and afterschool or community centers in the commonwealth; provided, however, that the regulations shall identify registration

time periods that allow eligible voters to participate in all municipal and state elections,
including primary elections.

(b) Superintendents of schools shall ensure that each voter challenge program
implemented in their districts provides opportunities for outreach and for all eligible voters to
register or pre-register to vote on any participating school or afterschool campus. An enrolled
student may apply to serve as a voter outreach coordinator or be selected to serve as a voter
outreach coordinator by a peer nomination process.

SECTION 9. Section 42 of Chapter 51 of the General Laws, as appearing in the 2018
Official Edition, is hereby amended by replacing “16 years” with “18 days”

SECTION 10. Section 47A of Chapter 51 of the General Laws, as appearing in the 2018
Official Edition, is hereby repealed.

SECTION 11. Section 50 of Chapter 51 of the General Laws, as appearing in the 2018
Official Edition, is hereby amended by inserting after “commonwealth”:-

who becomes eighteen days of age after the final time for registration under said section
twenty-six, or.